

SECTION 01 35 26
SAFETY REQUIREMENTS

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1.1 APPLICABLE PUBLICATIONS:

A. Latest publications listed below form part of this Article to extent referenced. Publications are referenced in text by basic designations only.

B. American Society of Safety Professionals (ASSP):

A10.1-2011.....Pre-Project & Pre-Task Safety and Health
Planning

A10.34-2012.....Protection of the Public on or Adjacent to
Construction Sites

A10.38-2013.....Basic Elements of an Employer's Program to
Provide a Safe and Healthful Work Environment
American National Standard Construction and
Demolition Operations

Z359.0-2012.....Definitions and Nomenclature Used for Fall
Protection and Fall Arrest

Z359.1-2016.....The Fall Protection Code

C. American Society for Testing and Materials (ASTM):

E84-2013.....Surface Burning Characteristics of Building
Materials

D. The Facilities Guidelines Institute (FGI):

FGI Guidelines-2010Guidelines for Design and Construction of
Healthcare Facilities

E. National Fire Protection Association (NFPA):

10-2018.....Standard for Portable Fire Extinguishers

30-2018.....Flammable and Combustible Liquids Code

51B-2019.....Standard for Fire Prevention During Welding,
Cutting and Other Hot Work

70-2020.....National Electrical Code

70B-2019.....Recommended Practice for Electrical Equipment
Maintenance

70E-2018Standard for Electrical Safety in the Workplace

241-2019.....Standard for Safeguarding Construction,
Alteration, and Demolition Operations

703-2024.....Standard for Fire Retardant-Treated Wood and
Fire-Retardant Coatings for Building Materials

F. The Joint Commission (TJC)

TJC ManualComprehensive Accreditation and Certification
Manual

G. U.S. Nuclear Regulatory Commission

10 CFR 20Standards for Protection Against Radiation

H. U.S. Occupational Safety and Health Administration (OSHA):

29 CFR 1904Reporting and Recording Injuries & Illnesses

29 CFR 1910Safety and Health Regulations for General
Industry

29 CFR 1926Safety and Health Regulations for Construction
Industry

CPL 2-0.124.....Multi-Employer Citation Policy

I. US Army Corps of Engineers Safety and Occupational Health (SOH)
Requirements Publication No. EM 385-1-1, 2024 edition

1.2 DEFINITIONS:

- A. OSHA "Competent Person" (CP). One who is capable of identifying existing and predictable hazards in the surroundings and working conditions which are unsanitary, hazardous or dangerous to employees, and who has the authorization to take prompt corrective measures to eliminate them (see 29 CFR 1926.32(f)).

B. Competent Person, Confined Space

The CP, Confined Space, is a person meeting the competent person requirements as defined EM 385-1-1 Appendix Q, with thorough knowledge of OSHA's Confined Space Standard, 29 CFR 1910.146, and designated in writing to be responsible for the immediate supervision, implementation and monitoring of the confined space program, who through training, knowledge and experience in confined space entry is capable of identifying, evaluating and addressing existing and potential confined space hazards and, who has the authority to take prompt corrective measures with regard to such hazards.

C. Competent Person, Cranes and Rigging.

The CP, Cranes and Rigging, as defined in EM 385-1-1 Appendix Q, is a person meeting the competent person, who has been designated in writing to be responsible for the immediate supervision, implementation and monitoring of the Crane and Rigging Program, who through training, knowledge and experience in crane and rigging is capable of identifying, evaluating and addressing existing and potential hazards and, who has the authority to take prompt corrective measures regarding such hazards.

D. Medical Treatment. Treatment administered by a physician or by registered professional personnel under the standing orders of a physician. Medical treatment does not include first aid treatment even through provided by physician or registered personnel.

1.3 SUBMITTAL REQUIREMENTS:

A. Government approval or concurrence is required for submittals with a "G" designation; submittals not having a "G" designation are submitted for information only.

B. Preconstruction Submittals

1. Accident Prevention Plan (APP); G

C. Certificates

1. Contractor Safety Self-Evaluation Checklist

2. Crane Operators/Riggers Certifications; G

- 3. Certificate of Compliance
- 4. Mobile Cranes Inspection Certificate
- 5. License Certificates
- 6. Machinery & Mechanized Equipment Certification Form

f. **TRAINING.**

- 1) Site-specific SOH orientation training at the time of initial hire or assignment to the project for every employee before working on the project site is required.
- 2) Mandatory training and certifications that are applicable to this project (e.g., explosive actuated tools, crane operator, rigger, crane signal person, fall protection, electrical lockout/NFPA 70E, machine/equipment lockout, confined space, etc....) and any requirements for periodic retraining/recertification are required.
- 3) Procedures for ongoing safety and health training for supervisors and employees shall be established to address changes in site hazards/conditions.
- 4) OSHA 10-hour Construction Outreach training within the past five years is required for all workers on site and the OSHA 30-hour Construction Outreach training within the past five years is required for Trade Competent Persons (CPs)

g. **SAFETY AND HEALTH INSPECTIONS.**

- 1) Specific assignment of responsibilities for a minimum daily job site safety and health inspection during periods of work activity: Who will conduct (e.g., "Site Safety and Health CP"), proof of inspector's training/qualifications, when inspections will be conducted, procedures for documentation, deficiency tracking system, and follow-up procedures.
- 2) Any external inspections/certifications that may be required (e.g., contracted CSP or CSHT)

1.7 PRECONSTRUCTION SAFETY CONFERENCE:

- A. Contractor representatives who have a responsibility or significant role in implementation of the accident prevention program, as required by 29 CFR 1926.20(b)(1), on the project shall attend the pre-construction safety conference to gain a mutual understanding of its implementation. This includes the project superintendent, subcontractor superintendents, and any other assigned safety and health professionals.
- B. Discuss the details of the submitted APP to include incorporated plans, programs, procedures and a listing of anticipated AHAs that will be developed and implemented during the performance of the contract. This list of proposed AHAs will be reviewed at the conference and an agreement will be reached between the Contractor and the Contracting Officer's representative as to which phases will require an analysis. In addition, establish a schedule for the preparation, submittal, review, and acceptance of AHAs to preclude project delays.

1.8 SAFETY MEETINGS:

Conduct safety meetings to review past activities, plan for new or changed operations, review pertinent aspects of appropriate AHA (by trade), establish safe working procedures for anticipated hazards, and provide pertinent Safety and Occupational Health (SOH) training and motivation. Conduct meetings at least once a month for all supervisors on the project location. The SSHO, supervisors, foremen, or CDSOs must conduct meetings at least once a week for the trade workers. Document meeting minutes to include the date, persons in attendance, subjects discussed, and names of individual(s) who conducted the meeting. Maintain documentation on-site and furnish copies to the Contracting Officer on request. Notify the Contracting Officer of all scheduled meetings 7 calendar days in advance.

1.10 TRAINING:

- A. The designated Prime Contractor SSHO must meet the requirements of all applicable OSHA standards and be capable (through training, experience,

and qualifications) of ensuring that the requirements of 29 CFR 1926.16 and other appropriate Federal, State and local requirements are met for the project.

- B. As a minimum the SSHO must have completed the OSHA 30-hour Construction Safety Outreach class within the past five (5) years and:
 - 1. Seven (7) years of construction industry safety related experience.
 - 2. OR have a safety and health degree from an accredited university or college and five (5) years of construction industry safety related experience
 - 3. OR hold as current, a Certified Safety Professional (CSP) or a Construction Health and Safety Technician (CHST) certification and five (3) years of construction industry safety related experience.

1.13 PERSONAL PROTECTIVE EQUIPMENT (PPE) :

- A. PPE is governed in all areas by the nature of the work the employee is performing. For example, specific PPE required for performing work on electrical equipment is identified in NFPA 70E, Standard for Electrical Safety in the Workplace.
- B. Any PPE above and beyond the Mandatory PPE identified below and determined by the Contracting Officer or their Representative to be necessary in the performance of the Governments duties relative to this contract, shall be provided to the Government upon written notification by the Contracting Officer and at no additional expense to the Government. All PPE provided to the Government shall also be accompanied by any relevant or required training necessary to ensure its proper use.
- C. Mandatory Minimum PPE includes:
 - 1. Hard Hats - unless written authorization is given by the Resident Engineer. finishing work or minor remodeling. With authorization to relax the requirement of hard hats, if a worker becomes exposed to

an overhead falling object hazard, then hard hats would be required in accordance with the OSHA and/or EM 385-1-1 regulations.

2. Safety glasses - unless written authorization is given by the in circumstances of no eye hazards, appropriate safety glasses meeting the ANSI Z.87.1 standard must be worn by each person on site.
3. Appropriate Safety Shoes - based on the hazards present, safety shoes meeting the requirements of ASTM F2413-11 shall be worn by each person on site unless written authorization is given by Resident Engineer in circumstances of no foot hazards.
4. Hearing protection - Use personal hearing protection at all times in designated noise hazardous areas or when performing noise hazardous tasks.
- 5.

1.14 PRE-CONSTRUCTION RISK ASSESSMENT

- A. Control of all construction-associated hazards that affect VA medical facilities, their occupants, services and mission-essential functions and capabilities is critical in all medical center facilities. VHA Pre-Construction Risk Assessments (PCRAs) for construction, renovation and maintenance projects are included with this contract solicitation with required mitigations of identified hazards. VHA-PCRAs will be re-validated and updated as needed based on but not limited to changes from original designs, affected individuals, areas/locations, scope, contractor means and methods, safety requirements, phasing, contractor competencies and capabilities.

1.18 ELECTRICAL

- A. All electrical work shall comply with NFPA 70 (NEC), NFPA 70B, NFPA 70E, 29 CFR Part 1910 Subpart J - General Environmental Controls, 29 CFR Part 1910 Subpart S - Electrical, and 29 CFR 1926 Subpart K in addition to other references required by contract.
- B. All qualified persons performing electrical work under this contract shall be licensed journeyman or master electricians. All apprentice electricians performing under this contract shall be deemed unqualified persons unless they are working under the immediate supervision of a licensed electrician or master electrician.

1.23 CONTROL OF HAZARDOUS ENERGY (LOCKOUT/TAGOUT)

- A. All installation, maintenance, and servicing of equipment or machinery shall comply with 29 CFR 1910.147 except for specifically referenced operations in 29 CFR 1926 such as concrete & masonry equipment [1926.702(j)], heavy machinery & equipment [1926.600(a)(3)(i)], and process safety management of highly hazardous chemicals (1926.64). Control of hazardous electrical energy during the installation, maintenance, or servicing of electrical equipment shall comply with Section 1.15 to include NFPA 70E and other VA specific requirements discussed in the section.

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